

MEANS, NOT VIEWS: THE CONSTITUTIONAL DISTINCTION BETWEEN RADICALISM AND EXTREMISM

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ABSTRACT

This Article identifies, defines, and defends a constitutional distinction that American First Amendment doctrine has long carried as an implicit thread but has not articulated as a unified analytical framework: the distinction between **radicalism** and **extremism**, drawn at **means, not views**. Radicalism is a political-doctrinal disposition that challenges conventional positions through constitutional means — speech, association, advocacy, petition, dissent, persuasion, peaceful boycott, electoral mobilization. Extremism is the use of unconstitutional means — violence, true threats, or imminent incitement of unlawful action — to advance a political view. The constitutional line is the means deployed, not the radicality of the view advanced. The Article develops three claims. First, this distinction is the operative principle underlying *Brandenburg v. Ohio*, *NAACP v. Claiborne Hardware Co.*, *Snyder v. Phelps*, and the modern First Amendment canon — but the doctrinal authorities have not previously been synthesized as a unified framework defining radicalism and extremism by reference to constitutional and unconstitutional means. Second, the framework carries a structural corollary the existing literature has not articulated: **conventional dispositions may themselves be extremist while remaining conventional**. American constitutional history demonstrates this repeatedly — slavery, Jim Crow, and the disenfranchisement of

women were conventional dispositions whose enforcement by violent means is now universally recognized as extremism that conventional politics legitimized. Radical challenges are the constitutional mechanism by which the polity identifies which conventional dispositions are themselves extremist. Third, the contemporary counter-terrorism predicate apparatus — exemplified by the May 2026 White House *U.S. Counterterrorism Strategy* and the June 2025 House Homeland Security hearing on "Anti-Israel Extremist Groups" — operationalizes a categorical collapse of this distinction, treating undefined political identities (Anarchist, Anti-Fascist, anti-American, radically pro-transgender, anti-Israel) as inherently extremist regardless of the constitutionality of the means deployed by persons so categorized. That collapse is unconstitutional under controlling Supreme Court precedent and, this Article argues, fundamentally inverts the constitutional structure under which radical challenges historically reveal conventional extremism. The Article concludes by examining the doctrinal and structural consequences of restoring the means/views distinction to its proper place in First Amendment analysis.

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I. INTRODUCTION

This Article begins from a doctrinal observation that has not, to the author's knowledge, been articulated as a unified analytical framework: American First Amendment doctrine has long policed a constitutional line between two categories of political-doctrinal disposition, distinguished by the *means* through which each operates rather than the *views* either holds. The two categories — radicalism and extremism — are routinely invoked in administrative, legislative, and journalistic discourse, frequently as interchangeable pejoratives. The Supreme Court's First Amendment cases have never explicitly defined either term. Yet the doctrinal substrate the Court has built — from *Schenck*¹ through *Whitney*,² *Brandenburg*,³ *Hess*,⁴ *Watts*,⁵ *NAACP v. Claiborne Hardware Co.*,⁶ *Snyder v. Phelps*,⁷ *Cohen v. California*,⁸ *Texas v. Johnson*,⁹ *Holder v. Humanitarian Law Project*,¹⁰ *Counterman v. Colorado*,¹¹ and the contemporary canon — describes precisely this distinction, line by line, case by case.

The doctrinal line is **means, not views**: government may proscribe speech that crosses into incitement of imminent lawless action, true threats, or speech integral to criminal conduct, but it may not proscribe speech because of the radicality of the view expressed.¹² The view is

1 *Schenck v. United States*, 249 U.S. 47 (1919) (upholding Espionage Act conviction of socialist for anti-draft pamphlets; articulating "clear and present danger" test in dicta).

2 *Whitney v. California*, 274 U.S. 357 (1927) (upholding California criminal syndicalism statute conviction; Brandeis, J., concurring).

3 *Brandenburg v. Ohio*, 395 U.S. 444 (1969) (per curiam).

4 *Hess v. Indiana*, 414 U.S. 105 (1973) (per curiam).

5 *Watts v. United States*, 394 U.S. 705 (1969) (per curiam).

6 *NAACP v. Claiborne Hardware Co.*, 458 U.S. 886 (1982).

7 *Snyder v. Phelps*, 562 U.S. 443 (2011).

8 *Cohen v. California*, 403 U.S. 15 (1971).

9 *Texas v. Johnson*, 491 U.S. 397 (1989).

10 *Holder v. Humanitarian Law Project*, 561 U.S. 1 (2010).

11 *Counterman v. Colorado*, 600 U.S. 66 (2023).

12 *Brandenburg*, 395 U.S. at 447 ("[T]he constitutional guarantees of free speech and free press do not permit a State to forbid or proscribe advocacy of the use of force or of law violation except where such advocacy is directed to inciting or producing imminent lawless action and is likely to incite or produce such action.").

constitutionally untouchable; the means by which the view is advanced is the only proper object of state regulation.

This Article gives the distinction the name the cases imply but never assign. *Radicalism* is a political-doctrinal disposition that challenges conventional positions through constitutional means: speech, association, advocacy, petition, dissent, persuasion, peaceful boycott, electoral mobilization, civil-society organization. *Extremism* is the use of unconstitutional means — violence, true threats, or imminent incitement of unlawful action — to advance any political view, conventional or radical. The constitutional line is drawn at the means, not at the radicality of the view.

This naming exercise might seem terminological. It is not. The contemporary administrative discourse on counter-terrorism — and, since May 2026, the formal executive-branch strategy document committing the United States to extrajudicial state action¹³ — treats "extremism" and "radicalism" as interchangeable categorical predicates, with the predicates defined neither by the means deployed nor by any statutory authority, but by political identity itself.¹⁴ The May 2026 White House *U.S. Counterterrorism Strategy* enumerates "Violent Left-Wing Extremists, including Anarchists and Anti-Fascists" as one of three "major types of terror groups";¹⁵ elaborates the category at page 7 to include persons whose "ideology is anti-American, radically pro-transgender, and anarchist";¹⁶ and pairs the enumeration with a Presidential commitment that "if you hurt Americans, or are planning to hurt Americans, '[w]e [w]ill [f]ind

¹³ U.S. COUNTERTERRORISM STRATEGY, THE WHITE HOUSE (May 2026) [hereinafter 2026 CT STRATEGY].

¹⁴ *Id.* at 5, 7 (enumerating categorical CT targets including "Violent Left-Wing Extremists, including Anarchists and Anti-Fascists" and "violent secular political groups whose ideology is anti-American, radically pro-transgender, and anarchist").

¹⁵ *Id.* at 5.

¹⁶ *Id.* at 7.

[y]ou and [w]e [w]ill [k]ill [y]ou."¹⁷ The categorical predicates are undefined in statute,¹⁸ the targeting is operationalized by a parallel commitment to "map them at home, identify their membership, map their ties to international organizations like Antifa, and use law enforcement tools to cripple them operationally,"¹⁹ and the documentary apparatus formalizes a pre-existing administrative-legislative practice exemplified by the June 11, 2025 hearing of the House Homeland Security Subcommittee on Counterterrorism and Intelligence: *The Rise of Anti-Israel Extremist Groups and Their Threat to U.S. National Security*.²⁰

The conflation of radicalism and extremism is therefore not academic. It is the operative framework under which the executive branch of the United States has committed, in writing, to deploy intelligence, military, financial, and law-enforcement capabilities against U.S. citizens identified by undefined political-identity predicates. The doctrinal question this Article addresses is whether First Amendment doctrine — and the broader constitutional inventory the doctrine inhabits — permits that operationalization. The doctrinal answer, this Article argues, is no.

The Article proceeds in seven parts. Part II surveys the existing doctrinal framework and the points at which the contemporary apparatus collapses it. Part III defines radicalism as constitutional-means challenge and develops the historical inventory of American radicalism — heliocentrism, abolitionism, women's suffrage, *Brown* and the civil rights movement, marriage equality — as the doctrinal evidence that radicalism is the constitutional mechanism through

¹⁷ *Id.* at 3 (Presidential Foreword, signed Donald J. Trump, May 2026).

¹⁸ Neither "Anarchist," "Anti-Fascist," "anti-American," "radically pro-transgender," nor "violent left-wing extremist" appears in 18 U.S.C. § 2331 (statutory definition of "international" and "domestic" terrorism), § 2332b(g)(5) (federal crime of terrorism), 8 U.S.C. § 1182(a)(3)(B)(iii) (terrorist activity for immigration purposes), 22 U.S.C. § 2656f(d) (terrorism for State Department reporting purposes), or 18 U.S.C. § 2333 (civil terrorism cause of action). The historic "anarchist" provision at 8 U.S.C. § 1182(a)(3)(D) is an immigration provision and has never been read to authorize CT action against U.S. citizens.

¹⁹ 2026 CT STRATEGY, *supra* note 14, at 7.

²⁰ *The Rise of Anti-Israel Extremist Groups and Their Threat to U.S. National Security*: Hearing Before the H. Subcomm. on Counterterrorism & Intelligence of the H. Comm. on Homeland Security, 119th Cong., Serial No. 119-19 (June 11, 2025) [hereinafter June 2025 Hrg.].

which conventional positions are reformed. Part IV defines extremism as the use of unconstitutional means and develops the *Brandenburg* line as the operative test. Part V articulates the corollary the existing literature has not previously identified: that conventional dispositions may themselves be extremist while remaining conventional, and that radical challenges are the constitutional mechanism for revealing which conventional dispositions are themselves extremist. Part VI applies the framework to contemporary counter-terrorism predicates, with particular attention to the 2026 CT Strategy and the June 2025 House Homeland Security hearing. Part VII develops the doctrinal and structural consequences of restoring the means/views distinction — for vagueness analysis, equal protection, due process, separation of powers, and Petition Clause litigation. A brief conclusion follows.

The Article does not invent new doctrine. The authorities are old, well-developed, and binding. What it offers is a synthesis: a unified framework that the existing doctrinal substrate supports but has not previously named. The framework is intended for practical use — by defenders facing the operational application of the counter-terrorism apparatus against constitutionally protected radical political activity, by courts confronting categorical predicates the framework's authority structure does not support, and by scholars who have long described the same doctrinal phenomena without a unified vocabulary.

II. THE STANDARD FRAMEWORK AND ITS CONTEMPORARY COLLAPSE

A. The Doctrinal Substrate

The First Amendment's text — "Congress shall make no law... abridging the freedom of speech, or of the press; or the right of the people peaceably to assemble, and to petition the Government

for a redress of grievances"²¹ — does not, on its face, distinguish radical speech from conventional speech, or extreme speech from moderate speech. The early twentieth-century cases applying the Amendment to political dissent — *Schenck*,²² *Frohwerk*,²³ *Debs*,²⁴ *Abrams*,²⁵ *Whitney*²⁶ — produced a doctrinal architecture that, while affirming convictions of political dissidents under the Espionage Act and state criminal syndicalism statutes, also produced the dissents and concurrences that would eventually become the doctrinal foundation for the modern distinction.

Justice Holmes's *Abrams* dissent articulated the principle that would mature into the modern test: "the best test of truth is the power of the thought to get itself accepted in the competition of the market, and that truth is the only ground upon which their wishes safely can be carried out."²⁷ Justice Brandeis's *Whitney* concurrence supplied the operative line: "Fear of serious injury cannot alone justify suppression of free speech and assembly. Men feared witches and burnt women. It is the function of speech to free men from the bondage of irrational fears."²⁸ Brandeis added the structural principle that would later define *Brandenburg*'s test: "no danger flowing from speech can be deemed clear and present, unless the incidence of the evil apprehended is so imminent that it may befall before there is opportunity for full discussion."²⁹

The Court formally adopted the Brandeis-Holmes framework in *Brandenburg v. Ohio*. *Brandenburg* held that "the constitutional guarantees of free speech and free press do not permit a State to forbid or proscribe advocacy of the use of force or of law violation except where such

21 U.S. CONST. amend. I.

22 *Schenck*, 249 U.S. 47.

23 *Frohwerk v. United States*, 249 U.S. 204 (1919).

24 *Debs v. United States*, 249 U.S. 211 (1919).

25 *Abrams v. United States*, 250 U.S. 616 (1919) (Holmes, J., dissenting).

26 *Whitney*, 274 U.S. 357 (Brandeis, J., concurring).

27 *Abrams*, 250 U.S. at 630 (Holmes, J., dissenting).

28 *Whitney*, 274 U.S. at 376 (Brandeis, J., concurring).

29 *Id.* at 377.

advocacy is directed to inciting or producing imminent lawless action and is likely to incite or produce such action."³⁰ The doctrinal innovation was the **two-prong test**: (1) the speech must be *directed to* inciting imminent lawless action (intent or directedness), and (2) the speech must be *likely to* incite or produce such action (probability/imminence). *Hess v. Indiana* clarified the imminence requirement: the speech at issue in *Hess* — "We'll take the fucking street later" — "amounted to nothing more than advocacy of illegal action at some indefinite future time" and could not be punished consistent with *Brandenburg*.³¹ *Watts v. United States* applied the same analytical move to true-threats doctrine, distinguishing "political hyperbole" from "true threats."³²

The modern Court has refined the test repeatedly. *Counterman v. Colorado* held that true-threats prosecutions require proof of at least recklessness as to the threatening nature of the statement.³³ *Snyder v. Phelps* held that offensive political speech on matters of public concern is protected even where the speech inflicts severe emotional distress on unwilling audiences.³⁴ *NAACP v. Claiborne Hardware Co.* held that a political boycott of segregated businesses was constitutionally protected even where extremist speech (calls for violence by one speaker) occurred in proximity to the protected political activity; the Court refused to impute the extremist speech to the boycott movement.³⁵ *Texas v. Johnson* held that flag-burning — among the most radical forms of symbolic political expression in American constitutional history — was

³⁰ *Brandenburg*, 395 U.S. at 447.

³¹ *Hess*, 414 U.S. at 108.

³² *Watts*, 394 U.S. at 708 ("[A] statute such as this one, which makes criminal a form of pure speech, must be interpreted with the commands of the First Amendment clearly in mind. What is a threat must be distinguished from what is constitutionally protected speech.").

³³ *Counterman*, 600 U.S. at 79 ("In the threats context, [recklessness] means that a speaker is aware that others could regard his statements as threatening violence and delivers them anyway.").

³⁴ *Snyder*, 562 U.S. at 458 ("Speech is powerful. It can stir people to action, move them to tears of both joy and sorrow, and—as it did here—inflict great pain. On the facts before us, we cannot react to that pain by punishing the speaker.").

³⁵ *Claiborne*, 458 U.S. at 909–11.

protected.³⁶ *Cohen v. California* held that offensive political expression ("Fuck the Draft" on a jacket worn in a courthouse) was protected.³⁷ *Holder v. Humanitarian Law Project* held that independent advocacy of foreign-terrorist-organization political positions — even where the speaker independently endorsed the FTO's goals — was protected; only conduct *coordinated* with the FTO was subject to material-support liability.³⁸

The line that runs through the cases is the line this Article names: **means, not views**. *Brandenburg's* incitement-and-imminence test is a test of *means* (directedness to imminent lawless action, likelihood of producing it), not a test of *views* (radicality, offensiveness, ideological extremity). *Watts's* true-threat test is a test of *means* (whether the speaker communicated a true threat), not a test of *views* (whether the speaker held threatening political views). *Claiborne's* political-boycott protection is a protection of *means* (peaceful boycott as a form of associational expression), not a protection of *views* (the views of the speakers being protected). *Holder v. HLP* draws the line at *coordination* (a means analysis), not at the *position* the speaker endorses.

B. The Administrative Inheritance: DVE, HVE, and the Radicalization Pipeline

In the post-9/11 era, federal counter-terrorism agencies developed an administrative apparatus for categorizing domestic threats that operates outside the doctrinal framework Part II.A describes. The FBI and Department of Homeland Security routinely deploy the categories "Domestic Violent Extremism" (DVE) and "Homegrown Violent Extremists" (HVE) as if these

³⁶ *Texas v. Johnson*, 491 U.S. at 414 ("If there is a bedrock principle underlying the First Amendment, it is that the government may not prohibit the expression of an idea simply because society finds the idea itself offensive or disagreeable.").

³⁷ *Cohen*, 403 U.S. at 25.

³⁸ *Holder v. HLP*, 561 U.S. at 26–27.

categories were statutorily defined predicates.³⁹ They are not. Neither term appears in 18 U.S.C. § 2331(5) (the statutory definition of "domestic terrorism"),⁴⁰ 18 U.S.C. § 2332b(g)(5) (the statutory definition of "federal crime of terrorism"),⁴¹ 8 U.S.C. § 1182(a)(3)(B) (the immigration "terrorist activity" definition),⁴² or any other terrorism statute Congress has enacted. The administrative categories supplement the statutory inventory by executive practice.

The administrative categories operationalize what scholars of the counter-terrorism literature have termed the "radicalization pipeline" model. The model treats radicalism as a *pathway* to extremism — radical ideas, in the model's framework, are the antecedent of extremist violence.⁴³ The model treats the political identity of a putative radical as itself a security concern, on the theory that the ideology produces the violence. The model is the analytical inverse of the *Brandenburg* framework: it imputes future violence from present political identity, while *Brandenburg* imputes proscribability only from imminent, likely lawless action.

Critical scholars have documented the conceptual and empirical failures of the pipeline model. Arun Kundnani has argued that "the introduction of policies designed to 'counter-radicalise' has been accompanied by the emergence of a government-funded industry of advisers, analysts, scholars, entrepreneurs and self-appointed community representatives who claim that their knowledge of a theological or psychological radicalisation process enables them to propose

39 See, e.g., U.S. DEPT OF HOMELAND SEC., STRATEGIC INTELLIGENCE ASSESSMENT AND DATA ON DOMESTIC TERRORISM (annual reports 2021–2025) (deploying "Domestic Violent Extremism" and "Homegrown Violent Extremists" categories without statutory grounding).

40 18 U.S.C. § 2331 (defining "international terrorism" at § 2331(1) and "domestic terrorism" at § 2331(5); neither definition incorporates a "DVE" or "HVE" category).

41 18 U.S.C. § 2332b(g)(5) (defining "federal crime of terrorism" for sentencing-enhancement purposes; no "DVE" or "HVE" category).

42 8 U.S.C. § 1182(a)(3)(B)(iii) (defining "terrorist activity" for immigration removability; no "DVE" or "HVE" category).

43 See, e.g., MARC SAGEMAN, LEADERLESS JIHAD: TERROR NETWORKS IN THE TWENTY-FIRST CENTURY (2008); Clark McCauley & Sophia Moskalenko, *Mechanisms of Political Radicalization: Pathways Toward Terrorism*, 20 TERRORISM & POL. VIOLENCE 415 (2008).

interventions in Muslim communities to prevent extremism."⁴⁴ Kundnani notes that "analyses of terrorism that locate its root cause in Islamist ideology and underlying cultural conflicts are conceptually flawed and inconsistent with the available evidence. There is no demonstrable cause and effect between holding an Islamist ideology and committing acts of terrorist violence. The notion that 'extremist ideas,' perhaps enabled by identity conflicts or group dynamics, by themselves turn people into violent radicals does not stand up to scrutiny."⁴⁵

Faiza Patel and Kundnani have specifically addressed the First Amendment implications. Reviewing the United Kingdom's "Prevent" counter-radicalization program, they observed that Prevent's "goal is also to combat 'extremism' of thought and belief among Muslims" but that "in the United States, we have a First Amendment that bars government interference in what we think, say and believe, and attempts to monitor thought and speech carry an enormous risk of mission creep."⁴⁶ The American Civil Liberties Union has made the same point in different language: "Radicalization theory is problematic from a civil liberties perspective because it identifies extreme *ideas*, rather than violent *behavior*, as the problem that needs to be addressed. If certain ideas are the problem, the solution invariably includes suppressing those ideas, in one way or another."⁴⁷

The critical literature's analysis is doctrinally aligned with the framework this Article articulates: the constitutional line is at means, not views. But the critical literature treats "radicalism" descriptively or sociologically, not as a constitutional category with definitional content. The scholars who have most clearly identified the conflation problem have not given the

44 Arun Kundnani, *Radicalisation: The Journey of a Concept*, 54 RACE & CLASS 3, 4 (2012).

45 *Id.* at 12; see also ARUN KUNDNANI, *THE MUSLIMS ARE COMING! ISLAMOPHOBIA, EXTREMISM, AND THE DOMESTIC WAR ON TERROR* (2014).

46 Faiza Patel & Arun Kundnani, *Counter-Radicalization Lessons From the United Kingdom*, ROLL CALL (July 28, 2011), <https://rollcall.com/2011/07/28/patel-kundnani-counter-radicalization-lessons-from-the-united-kingdom/>.

47 Mike German & Jay Stanley, *Who's a Radical Now?*, AM. CIVIL LIBERTIES UNION (2011), <https://www.aclu.org/news/national-security/whos-radical-now>.

protected category a name. The doctrinal authority exists. The constitutional vocabulary does not.

C. THE CONTEMPORARY COLLAPSE

In May 2026, the executive branch of the United States published a document that operationalizes the conflation at the highest possible level. The White House *U.S. Counterterrorism Strategy* (the "2026 CT Strategy") opens with a Presidential Foreword, signed by Defendant Donald J. Trump, concluding with the following commitment:

Our new U.S. Counterterrorism Strategy is a return to common sense and Peace through Strength. As I said after our first successful counterterrorism mission, just days after I was sworn back in office — if you hurt Americans, or are planning to hurt Americans, "We Will Find You and We Will Kill You."⁴⁸

The Foreword's predicate joins two phrases with the disjunctive "or": persons who have "hurt Americans" (a completed act) and persons who "are planning to hurt Americans" (an inferred future intent). The second phrase strips the predicate from any completed criminal act and attaches the announced state-killing commitment to attributed future intent. Under every American constitutional framework — going back to *Marbury v. Madison*⁴⁹ and forward through *Hamdi v. Rumsfeld*⁵⁰ and *Boumediene v. Bush*⁵¹ — the attribution of future criminal intent to a U.S. citizen is the predicate that *requires* due process, indictment, trial, conviction, and constitutional sentencing. It is not the predicate that can authorize summary state killing.

48 2026 CT STRATEGY, *supra* note 14, at 3 (Presidential Foreword) (emphasis added in original "We Will Find You and We Will Kill You").

49 *Marbury v. Madison*, 5 U.S. (1 Cranch) 137 (1803).

50 *Hamdi v. Rumsfeld*, 542 U.S. 507 (2004).

51 *Boumediene v. Bush*, 553 U.S. 723 (2008).

The Strategy's categorical inventory at page 5 enumerates three "major types of terror groups":

Currently we face three major types of terror groups: > • Narcoterrorists and Transnational Gangs • Legacy Islamist Terrorists • Violent Left-Wing Extremists, including Anarchists and Anti-Fascists⁵²

The grammatical structure of the third category is critical. "Including" in legal and ordinary drafting introduces examples that are subsumed within the prior category.⁵³ The text therefore deems "Anarchists" and "Anti-Fascists" to be "violent left-wing extremists" by definition, without any requirement of proof of violence by any individual person so categorized.

The Strategy elaborates at page 7 to add two further undefined political-identity categories:

In addition to cartels and Islamist terror groups, our national CT activities will also prioritize the rapid identification and neutralization of violent secular political groups whose ideology is anti-American, radically pro-transgender, and anarchist. We will use all the tools constitutionally available to us to map them at home, identify their membership, map their ties to international organizations like Antifa, and use law enforcement tools to cripple them operationally before they can maim or kill the innocent.⁵⁴

The Strategy commits the executive branch's full counter-terrorism apparatus — intelligence agencies that "since 9/11, have become the world's best at 'Finding and Fixing' high value targets anywhere in the world... [and] Tier 1 and Tier 2 military units without peer anywhere in the world able to close with and 'finish' these targets"⁵⁵ — to operational deployment against the categorical class.

52 2026 CT STRATEGY, *supra* note 14, at 5.

53 See Antonin Scalia & Bryan A. Garner, READING LAW: THE INTERPRETATION OF LEGAL TEXTS § 15 (2012) (discussing the canon of inclusive enumeration; "including" introduces examples within the prior category, not items in addition to it).

54 2026 CT STRATEGY, *supra* note 14, at 7.

55 *Id.* at 8.

The conflation the Strategy formalizes was not new in May 2026. The June 11, 2025 hearing of the House Homeland Security Subcommittee on Counterterrorism and Intelligence — *The Rise of Anti-Israel Extremist Groups and Their Threat to U.S. National Security*, Serial No. 119-19⁵⁶ — illustrates the pre-existing administrative-legislative practice. The hearing record uses "extremism" and "radicalism" interchangeably,⁵⁷ folds political demonstrations against domestic federal enforcement into the same threat space as antisemitic violence,⁵⁸ and treats the administrative categories "DVE" and "HVE" as if they were statutory categories when they are not.⁵⁹ The hearing's own title — "Anti-Israel Extremist Groups" — collapses political opposition to a foreign state's policies into a categorical CT predicate, treating dissent on United States foreign policy alignment with Israel as inherently within the proscribable category.

The structural problem the Strategy and the hearing together expose is the problem this Article addresses. The constitutional framework articulated by *Brandenburg* and the modern First Amendment canon draws a line at *means*. The administrative framework operationalized by the Strategy draws a line at *views*. The two frameworks are mutually exclusive: either the constitutional line is means and the Strategy's predicate is unconstitutional, or the Strategy's predicate is constitutional and *Brandenburg* must be quietly displaced. The doctrinal weight is wholly on one side. This Article develops the framework that names what is at stake.

⁵⁶ June 2025 Hrg., *supra* note 17.

⁵⁷ See, e.g., *id.* at 236, 243 (using "radicalization" and "extremism" interchangeably in opening statements).

⁵⁸ *Id.* at 185–98 (Chairman's opening statement linking "anti-ICE rioters in Los Angeles and... many other cities" to antisemitic violence).

⁵⁹ *Id.* at 882 (treating "Foreign Terrorist Organizations, Homegrown Violent Extremists, and Domestic Violent Extremists" as parallel statutory categories without distinguishing the latter two as administrative-only).

III. RADICALISM, DEFINED

A. The Operative Definition

Radicalism is a political-doctrinal disposition that challenges conventional political positions through constitutional means. The means catalogue is exhaustive in its breadth: speech, association, advocacy, petition, dissent, persuasion, peaceful boycott, electoral mobilization, civil-society organization, scholarly critique, public protest, legal challenge, and the full range of communicative and associational activity the First Amendment protects. The defining feature of radicalism is not the radicality of the view advanced; the views radicals advance run the full ideological spectrum, from libertarian to socialist to anarchist to communitarian to abolitionist to suffragist to civil-rights. The defining feature is the constitutional nature of the means deployed.

This definition is not novel as a description of constitutional doctrine. *Brandenburg*, *Hess*, *Watts*, *Claiborne*, *Snyder*, *Cohen*, *Johnson*, and *Holder v. HLP* all stand for the proposition that government may not proscribe political speech because of the radicality of the view advanced. What is novel — at least insofar as the author's research can determine — is naming the protected category. The doctrinal substrate has carried the principle for over a century without giving the protected category an analytic name. Calling the protected category "radicalism" is a synthesis move, not a doctrinal innovation.

B. The Historical Inventory

American constitutional history is the history of radical positions becoming conventional. The trajectory is repeatable, observable, and structurally consistent across two centuries of constitutional development. Each of the following positions was, at the time first asserted, radical — held by a minority, denounced by the conventional majority, and (in many cases) prosecuted

or harassed under prevailing legal and political conditions. Each is now conventional, and the constitutional structure has formally vindicated each one. The mechanism in each case was radical constitutional challenge.

Heliocentrism, by analogy, illustrates the broader principle: cosmological positions held first by the radical minority eventually became conventional through the operation of evidence and discourse, not through the suppression of the radical position.⁶⁰ The American constitutional analogues operate by the same mechanism but with explicit doctrinal validation.

The abolition of slavery was the most consequential radical American constitutional challenge of the nineteenth century. The conventional disposition of American law for the first 78 years of the Republic was that chattel slavery was constitutionally protected — protected by the Three-Fifths Clause,⁶¹ the Fugitive Slave Clause,⁶² and the Court's express endorsement in *Dred Scott v. Sandford*.⁶³ The radical position — that the Constitution properly understood prohibited slavery, or that the Constitution should be amended to prohibit slavery, or that the federal government had power to legislate against slavery in the territories — was held by abolitionists, the antislavery Whigs, the Republican Party, and a substantial body of constitutional scholarship from the founding through the Civil War.⁶⁴ The radical position was advanced through speech, association, journalism, electoral mobilization, civil-society organization, the Underground Railroad's peaceful aid to fugitives, and the political campaigns

60 The heliocentric analogy is offered as a non-American illustration of the same structural pattern: a position held first by a radical minority (Copernicus, Galileo), denounced by conventional authority (the Roman Inquisition's condemnation of Galileo in 1633), eventually vindicated by the same investigative method the radicals invoked (empirical observation, mathematical analysis). The constitutional context differs but the structural pattern is the same.

61 U.S. CONST. art. I, § 2, cl. 3 (repealed in operative effect by U.S. CONST. amend. XIV, § 2).

62 U.S. CONST. art. IV, § 2, cl. 3 (repealed in operative effect by U.S. CONST. amend. XIII).

63 *Dred Scott v. Sandford*, 60 U.S. (19 How.) 393 (1857), superseded by U.S. CONST. amend. XIII, XIV.

64 See DAVID BRION DAVIS, *INHUMAN BONDAGE: THE RISE AND FALL OF SLAVERY IN THE NEW WORLD* (2006); ERIC FONER, *THE FIERY TRIAL: ABRAHAM LINCOLN AND AMERICAN SLAVERY* (2010); JAMES OAKES, *FREEDOM NATIONAL: THE DESTRUCTION OF SLAVERY IN THE UNITED STATES, 1861-1865* (2013).

of the abolitionist movement. The radical position was constitutionally vindicated by the Reconstruction Amendments, which converted the radical position into conventional constitutional law.⁶⁵ The radical position is now so thoroughly conventional that it is the predicate against which any contemporary defense of slavery would itself be evaluated as extremism.

Women's suffrage followed the same trajectory. The conventional disposition of American law was that the constitutional franchise did not extend to women.⁶⁶ The radical position — that women were constitutionally entitled to vote on the same terms as men — was advanced through the women's suffrage movement, the National American Woman Suffrage Association, the suffragist press, the suffrage parades of the 1910s, the petition campaigns, and the persistent constitutional advocacy that culminated in the Nineteenth Amendment.⁶⁷ The radical position was advanced through constitutional means. It was also met with conventional violence — the Night of Terror at the Occoquan Workhouse on November 14, 1917, where guards beat, choked, and force-fed imprisoned suffragists.⁶⁸ The violence was deployed by conventional authority against constitutional dissent. The radical position prevailed; it is now so conventional that its radicality is invisible to most contemporary Americans.

Racial equality and the dismantling of Jim Crow is the third great American example. *Plessy v. Ferguson* established the conventional doctrine that "separate but equal" satisfied the Fourteenth Amendment.⁶⁹ The radical position — that *Plessy* was wrong, that segregation violated the Equal Protection Clause as properly understood, that the Reconstruction

65 U.S. CONST. amends. XIII, XIV, XV.

66 *Minor v. Happersett*, 88 U.S. (21 Wall.) 162 (1874) (holding that the Fourteenth Amendment did not confer the right of suffrage on women), superseded by U.S. CONST. amend. XIX.

67 U.S. CONST. amend. XIX (ratified Aug. 18, 1920).

68 See DORIS STEVENS, *JAILED FOR FREEDOM* 169–95 (1920) (describing Night of Terror at Occoquan Workhouse, Nov. 14, 1917).

69 *Plessy v. Ferguson*, 163 U.S. 537 (1896).

Amendments required dismantling the entire apparatus of segregation — was advanced by the NAACP Legal Defense Fund, by the civil rights movement, by Thurgood Marshall, by Martin Luther King Jr., by the Freedom Riders, by the Montgomery Bus Boycott, by the lunch counter sit-ins, by the litigation strategy that culminated in *Brown v. Board of Education*.⁷⁰ The radical position was advanced through constitutional means. It was also met with conventional violence — Klan terrorism, lynchings, the Birmingham bombings, the murder of Medgar Evers, the assassinations of Malcolm X and Martin Luther King Jr.⁷¹ The radical position prevailed; the constitutional structure now recognizes the dismantling of Jim Crow as the paradigmatic vindication of Reconstruction's promise.

Marriage equality is the most recent example in the canon. The conventional doctrine, codified in the Defense of Marriage Act⁷² and confirmed by *Baker v. Nelson*,⁷³ was that constitutional marriage was limited to opposite-sex couples. The radical position — that same-sex couples were constitutionally entitled to equal recognition under the Due Process and Equal Protection Clauses — was advanced through the gay-rights movement, through litigation in *Lawrence v. Texas*,⁷⁴ *United States v. Windsor*,⁷⁵ and *Obergefell v. Hodges*,⁷⁶ through scholarly advocacy, through electoral mobilization, and through the patient associational and persuasive work of two generations of LGBTQ advocacy. The radical position prevailed.

The structural pattern in each case is identical. A position held first by a radical minority, denounced by conventional authority, advanced through constitutional means (speech,

⁷⁰ *Brown v. Board of Education*, 347 U.S. 483 (1954).

⁷¹ See generally TAYLOR BRANCH, PARTING THE WATERS: AMERICA IN THE KING YEARS 1954–63 (1988); TAYLOR BRANCH, PILLAR OF FIRE: AMERICA IN THE KING YEARS 1963–65 (1998).

⁷² Defense of Marriage Act, Pub. L. No. 104-199, 110 Stat. 2419 (1996), held unconstitutional in part by *United States v. Windsor*, 570 U.S. 744 (2013).

⁷³ *Baker v. Nelson*, 409 U.S. 810 (1972) (dismissing for want of substantial federal question), overruled by *Obergefell v. Hodges*, 576 U.S. 644 (2015).

⁷⁴ *Lawrence v. Texas*, 539 U.S. 558 (2003).

⁷⁵ *United States v. Windsor*, 570 U.S. 744 (2013).

⁷⁶ *Obergefell v. Hodges*, 576 U.S. 644 (2015).

association, advocacy, petition, persuasion, peaceful protest, litigation, electoral mobilization), eventually vindicated by the same constitutional structure the radicals invoked. Radicalism, in each case, was the mechanism through which the polity identified the conventional disposition as constitutionally defective and reformed itself.

C. THE DOCTRINAL FOUNDATION FOR TREATING RADICALISM AS PROTECTED

The historical inventory is descriptive. The doctrinal foundation that treats radicalism as constitutionally protected is the modern First Amendment canon.

Brandenburg draws the operative line. A state cannot proscribe advocacy "except where such advocacy is directed to inciting or producing imminent lawless action and is likely to incite or produce such action."⁷⁷ The Klan rhetoric at issue in *Brandenburg* was radical (and extreme by the user's framework if it included calls for imminent violence; the Court's holding rests on the absence of imminence). The rhetoric the Court protected was advocacy without imminence.

Hess clarifies that mere advocacy of unlawful action "at some indefinite future time" is protected.⁷⁸ The radical view is protected; the line is at imminent unlawful action.

Watts distinguishes "political hyperbole" — even hyperbole that uses violent imagery against the President of the United States — from "true threats" that satisfy a reasonable-listener test.⁷⁹ The view, even violent in its imagery, is protected; the line is at the means (whether a reasonable listener would receive the statement as a true threat).

NAACP v. Claiborne Hardware is perhaps the most directly relevant doctrinal foundation for the radicalism/extremism distinction. The case arose from a political boycott of segregated

⁷⁷ *Brandenburg*, 395 U.S. at 447.

⁷⁸ *Hess*, 414 U.S. at 108.

⁷⁹ *Watts*, 394 U.S. at 708.

businesses in Port Gibson, Mississippi, organized by the NAACP in 1966. The state prosecuted the NAACP and individual organizers for "tortious interference" with business, citing — among other things — speeches by NAACP organizers that called for retribution against Black community members who broke the boycott. The Supreme Court reversed. The Court held that the political boycott itself was constitutionally protected as "concerted action of political activists seeking to bring about political, social, and economic change."⁸⁰ Even more importantly for the framework this Article articulates, the Court refused to impute extremist rhetoric by one speaker (Charles Evers's famous "if we catch any of you going in any of them racist stores, we're gonna break your damn neck") to the boycott movement as a whole.⁸¹ The Court's analysis was a means analysis: the *means* of the political boycott (peaceful association, advocacy, economic withdrawal of patronage) were protected. The means of individual incitement (if proven on a separate record) could be sanctioned. The constitutional line ran between the protected means of the movement and the (potentially) unprotected means of any individual speaker.

Holder v. Humanitarian Law Project makes the means analysis explicit at the level of the federal material-support statute. The Court held that 18 U.S.C. § 2339B's prohibition on "material support" to designated Foreign Terrorist Organizations could constitutionally reach *coordinated* speech with an FTO (training in international advocacy, for example) but could not constitutionally reach *independent* advocacy of the FTO's political positions.⁸² The line — between coordination (means analysis) and independent advocacy (protected) — is exactly the

⁸⁰ *Claiborne*, 458 U.S. at 911.

⁸¹ *Id.* at 902 ("This Court has recognized that expression on public issues 'has always rested on the highest rung of the hierarchy of First Amendment values.'") (quoting *Carey v. Brown*, 447 U.S. 455, 467 (1980)); *id.* at 928 (refusing to impute extremist speech to the boycott movement).

⁸² *Holder v. HLP*, 561 U.S. at 26 ("[The statute does not] criminalize *independent* advocacy in support of a foreign terrorist group's lawful or unlawful goals.") (emphasis in original).

line *Brandenburg* drew. The FTO's political views are not the predicate for criminal liability; coordination is.

Counterman refines the true-threats analysis with a recklessness mens rea requirement.⁸³ The line remains at means (true threats), now with a state-of-mind component.

Snyder v. Phelps protects offensive political speech at a soldier's funeral.⁸⁴ The view (Westboro Baptist's exceptionally offensive political positions) is protected; the line is at means (whether the speech crosses into actionable tort outside First Amendment protection).

Cohen v. California protects offensive political expression worn in a courthouse.⁸⁵ *Texas v. Johnson* protects flag-burning, the most radical form of symbolic American political expression.⁸⁶ The pattern repeats: the view is protected, the line is at means.

The radicality of the view, in each of these cases, is not the constitutional question. The means deployed — the form the political expression takes, the conditions under which it is uttered, the relationship between the speech and the imminent risk of unlawful action — are the constitutional question.

D. What Radicalism Is Not

Three clarifying observations. First, radicalism is not synonymous with offensiveness. Many radical positions are not offensive; many offensive positions are not radical. The constitutional treatment is the same in both cases — protected unless the means cross the *Brandenburg* line — but the categories are analytically distinct.

⁸³ *Counterman*, 600 U.S. at 79.

⁸⁴ *Snyder*, 562 U.S. at 458.

⁸⁵ *Cohen*, 403 U.S. at 25.

⁸⁶ *Texas v. Johnson*, 491 U.S. at 414.

Second, radicalism is not synonymous with leftism. The historical inventory in Part III.B contains positions advanced by movements across the political spectrum. The abolitionist movement contained both moral-suasion radicals (e.g., William Lloyd Garrison) and political-action radicals (e.g., the Liberty Party). The women's suffrage movement contained both moderate suffragists (the NAWSA) and more militant suffragists (the National Woman's Party). The civil rights movement contained both nonviolent direct-action radicals (King, the SCLC) and more confrontational radicals (Malcolm X, the Black Panthers). Each was, in the operative meaning of the term, radical — challenging conventional positions through constitutional means.⁸⁷ The marriage-equality movement contained advocacy from across the political spectrum, including substantial libertarian and conservative voices.⁸⁸ Radicalism does not map onto left-right politics.

Third, radicalism is not synonymous with truth. A radical position may be wrong. The radical heliocentrism of Galileo was right; the radical phlogiston theory of eighteenth-century chemistry was wrong. The constitutional treatment is independent of the truth-value of the radical position: the same First Amendment protection applies whether the radical view will eventually prevail, eventually be rejected, or remain controversial in perpetuity. The constitutional protection rests on the means deployed (peaceful advocacy, persuasion, association, dissent), not on the eventual correctness of the position advanced.

⁸⁷ See generally MICHAEL KAZIN, *AMERICAN DREAMERS: HOW THE LEFT CHANGED A NATION* (2011); LISA MCGIRR, *SUBURBAN WARRIORS: THE ORIGINS OF THE NEW AMERICAN RIGHT* (2001).

⁸⁸ See JONATHAN RAUCH, *GAY MARRIAGE: WHY IT IS GOOD FOR GAYS, GOOD FOR STRAIGHTS, AND GOOD FOR AMERICA* (2004) (developing conservative case for marriage equality).

IV. EXTREMISM, DEFINED

A. The Operative Definition

Extremism is the use of unconstitutional means to advance a political view. The means catalogue is narrow and well-defined by the doctrinal substrate: violence, true threats (under *Watts/Counterman*), imminent incitement of unlawful action (under *Brandenburg/Hess*), fighting words (under *Chaplinsky*),⁸⁹ speech integral to criminal conduct (under *Giboney*),⁹⁰ coordination with designated foreign terrorist organizations (under *Holder v. HLP*),⁹¹ and the narrow categories of speech the modern Court has held to be unprotected.⁹²

The defining feature of extremism, like the defining feature of radicalism, is the means deployed — not the view advanced. Bombing a clinic, assassinating a political opponent, storming a government building to obstruct a constitutional process — these are extremist acts because the *means* are unconstitutional, not because the *views* asserted are unfamiliar. The bomber's underlying view may be conventional, radical, or somewhere in between; the constitutional treatment is determined by the means deployed, not by the radicality of the view.

This definition aligns with the doctrinal architecture. *Brandenburg* draws the constitutional line at means (imminent-and-likely incitement). *Watts* draws the line at means (true threats). *Chaplinsky* (now largely confined to its narrow original facts) drew the line at means (fighting words). The unprotected categories the modern Court recognizes are defined by means, not by views.

⁸⁹ *Chaplinsky v. New Hampshire*, 315 U.S. 568 (1942).

⁹⁰ *Giboney v. Empire Storage & Ice Co.*, 336 U.S. 490 (1949).

⁹¹ *Holder v. HLP*, 561 U.S. at 26.

⁹² See *United States v. Stevens*, 559 U.S. 460, 472 (2010) (cataloging "historic and traditional categories" of unprotected speech: obscenity, defamation, fraud, incitement, fighting words, true threats, child pornography, speech integral to criminal conduct; declining to recognize new unprotected categories without long-established constitutional pedigree).

B. The *Brandenburg* Test as the Operative Standard

The *Brandenburg* test has two prongs that operate together:

Prong One: Directedness. The speech must be "directed to inciting or producing imminent lawless action."⁹³ This is a mens rea component: the speaker must intend (or be reasonably understood as intending) to incite imminent unlawful action. Mere advocacy of unlawful action in the abstract — Communist Party advocacy of revolution at some future time, advocacy of resistance to a draft, advocacy of nullification of a tax — does not satisfy this prong. The doctrinal foundation here is the rejection of "bad tendency" tests that asked whether speech could *eventually* lead to unlawful action.⁹⁴ *Brandenburg* requires direction toward *imminent* lawless action.

Prong Two: Likelihood. The speech must be "likely to incite or produce such action."⁹⁵ This is an objective component: the listener and circumstances must be such that imminent lawless action is the likely outcome. Speech delivered to an empty room, speech delivered to listeners who clearly will not act, speech delivered in circumstances where lawless action is not feasible — these are protected even if the speaker subjectively intends to incite, because the imminence and likelihood are absent.

Hess v. Indiana applied the test in the immediate post-*Brandenburg* period. Indiana convicted Gregory Hess for disorderly conduct based on his statement, during a protest at Indiana University, "We'll take the fucking street later" (or "again"). The Court reversed. The statement was at most "advocacy of illegal action at some indefinite future time" and did not

⁹³ *Brandenburg*, 395 U.S. at 447.

⁹⁴ See *Gitlow v. New York*, 268 U.S. 652 (1925) (applying "bad tendency" test to uphold conviction under criminal anarchy statute); *Whitney*, 274 U.S. 357 (similar); *Brandenburg*, 395 U.S. at 447–48 (overruling *Whitney* and rejecting "bad tendency" approach).

⁹⁵ *Brandenburg*, 395 U.S. at 447.

satisfy the imminence-likelihood test.⁹⁶ *Hess* is doctrinally important because it confirmed that *Brandenburg* draws a narrow line: even speech expressing intent to commit unlawful action is protected if imminence is absent.

The line that emerges from *Brandenburg* and *Hess* is dispositive of the radicalism/extremism distinction. Radical political speech that does not satisfy both prongs is protected; the radicality of the view does not matter. Speech that satisfies both prongs — directedness to imminent lawless action, likely to produce it — is extremism in the sense this Article uses the term, and is properly proscribable. The constitutional inquiry runs through the means; the view is doctrinally irrelevant.

C. THE OTHER UNPROTECTED CATEGORIES

The *Brandenburg* line is the most important application of the means analysis, but it is not the only one. The modern Court has recognized several other narrow categories of unprotected speech, each defined by means rather than views.

True threats are unprotected under *Watts v. United States*⁹⁷ and refined by *Counterman v. Colorado*⁹⁸ and *Virginia v. Black*.⁹⁹ The doctrinal test asks whether the speaker communicated "a serious expression of an intent to commit an act of unlawful violence to a particular individual or group of individuals."¹⁰⁰ *Counterman* added a recklessness mens rea requirement: the speaker

⁹⁶ *Hess*, 414 U.S. at 108.

⁹⁷ *Watts*, 394 U.S. 705.

⁹⁸ *Counterman*, 600 U.S. 66.

⁹⁹ *Virginia v. Black*, 538 U.S. 343 (2003).

¹⁰⁰ *Id.* at 359.

must have at least recklessly disregarded the threatening nature of the statement.¹⁰¹ The test is, again, a means test: the *form* of the communication, not the political view advanced.

Fighting words, under *Chaplinsky v. New Hampshire*, are "those which by their very utterance inflict injury or tend to incite an immediate breach of the peace."¹⁰² The doctrine has been narrowly construed in the modern era; subsequent cases have largely confined *Chaplinsky* to face-to-face direct invective in circumstances likely to provoke immediate violent response.¹⁰³ Again, a means test.

Speech integral to criminal conduct is unprotected under *Giboney v. Empire Storage & Ice Co.*¹⁰⁴ The doctrine permits regulation of speech that is itself part of a criminal transaction (e.g., the verbal portion of a conspiracy, the threat that constitutes extortion). The line is at the *integration* of speech with criminal conduct, not at the political view the speech expresses.

Coordination with designated foreign terrorist organizations is reachable under 18 U.S.C. § 2339B's material-support provisions, but only where the speech is *coordinated* with the FTO. *Holder v. HLP* upheld the statute as applied to coordinated speech (training the FTO in international advocacy, for example) while expressly preserving the protection for *independent* advocacy of the FTO's political positions.¹⁰⁵ The line — coordination versus independent advocacy — is a means analysis.

¹⁰¹ *Counterman*, 600 U.S. at 79.

¹⁰² *Chaplinsky*, 315 U.S. at 572.

¹⁰³ See *Gooding v. Wilson*, 405 U.S. 518 (1972); *Cohen*, 403 U.S. at 20 (face-to-face requirement); *Texas v. Johnson*, 491 U.S. at 409 (similar).

¹⁰⁴ *Giboney*, 336 U.S. 490.

¹⁰⁵ *Holder v. HLP*, 561 U.S. at 26–27.

D. What Extremism Is Not

Extremism, on this Article's framework, is *not* defined by the radicality of the view advanced. A speaker who calls for the violent overthrow of the government at an indefinite future time is engaged in radical advocacy, not extremism, unless and until the speech satisfies *Brandenburg's* two prongs. A speaker who holds extreme political views — anarchism, theocracy, secession, race separatism, communism — is not, by virtue of holding those views, an extremist in the constitutional sense. The view is not the constitutional question.

Extremism is also not defined by the offensiveness of the means. *Snyder v. Phelps* protected the Westboro Baptist Church's deeply offensive political speech because the means (peaceful demonstration on public matters of public concern) did not cross the *Brandenburg*, *Watts*, or *Chaplinsky* lines.¹⁰⁶ The offensiveness of the means — like the offensiveness of the view — is not the constitutional question.

Finally, extremism is not defined by political minority status. The view of the speaker may be unconventional, marginal, even universally condemned. Constitutional treatment is determined by the means deployed, not by the speaker's place on the spectrum of public opinion. *Texas v. Johnson's* flag-burning was overwhelmingly condemned by the American public at the time of the decision;¹⁰⁷ the Court protected it because the means (symbolic expression on a matter of public concern) did not satisfy any of the unprotected-speech tests.

¹⁰⁶ *Snyder*, 562 U.S. at 458.

¹⁰⁷ See Gallup, Most Americans Oppose Flag Burning, GALLUP NEWS (June 30, 2006) (reporting that 56% of Americans favored a constitutional amendment to permit Congress to prohibit flag desecration at the time *Johnson* was decided; the figure declined over subsequent decades but remained majority for many years).

V. THE CONVENTIONAL EXTREMISM COROLLARY

A. The Structural Insight

The radicalism/extremism distinction, as articulated in Parts III and IV, generates a structural corollary the existing literature has not articulated as such. Because the distinction operates on *means* rather than *views*, two consequences follow:

First, radical views — defined as political-doctrinal challenges to convention — are necessarily constitutionally protected, because the radicality of the view is doctrinally irrelevant to constitutional treatment. Radicalism, *qua* the constitutional category, exists by its means; the radicality of its view is unconstrained.

Second, and crucially: **conventional dispositions may themselves be extremist while remaining conventional.** Convention does not insulate a position from extremist characterization on the means analysis. If a conventional disposition is maintained by violent means — by lynching, by patrol violence, by force-feeding political dissidents, by mass extrajudicial state action — the conventional disposition's *means* satisfy the extremism criterion, regardless of the disposition's status as conventional in the contemporary political moment.

The asymmetry between radicalism and convention is, accordingly, structural and inverse to the contemporary administrative framing. Radicalism, defined by constitutional means, is always protected. Convention, defined by reference to the contemporary political mainstream, may or may not be extremist depending on the means by which it is maintained. The contemporary administrative apparatus treats convention as inherently constitutional and radical challenge as inherently extremist; the constitutional analysis is the inverse: radicalism is structurally protected, convention is doctrinally susceptible to characterization as extremist whenever it is maintained by unconstitutional means.

This corollary is not a normative argument. It is a structural observation about how the means analysis operates. If the constitutional line is means, then convention by violent means *is* extremism, doctrinally; if convention by violent means is not extremism, then the constitutional line is something other than means. The doctrinal substrate the Court has built — *Brandenburg*, *Watts*, *Chaplinsky*, *Claiborne*, the Reconstruction Amendments, the equal protection cases — does not permit the latter conclusion. The line is means. Convention by violent means is therefore extremism.

B. Historical Inventory of Conventional Extremism

The historical inventory developed in Part III.B can be re-examined from the conventional-extremism perspective. In each case, the radical challenge that eventually prevailed was opposed not just by conventional speech but by conventional *violence* — violence carried out by conventional authority against constitutional dissent. The conventional-extremism analysis re-categorizes that violence not as conventional politics but as conventional *extremism* — the use of unconstitutional means to maintain the conventional disposition against radical challenge.

Slavery and its enforcement. The conventional disposition of chattel slavery was maintained by violent means that the modern constitutional structure unequivocally treats as extremism. Slave patrols, the legal apparatus of fugitive slave acts that compelled federal officials to participate in returning escaped persons to bondage, the Fugitive Slave Act's authorization of summary administrative procedures that bypassed the Article III judiciary,¹⁰⁸ the violent suppression of slave revolts, the *Dred Scott* doctrine that constitutionalized the racial

¹⁰⁸ Fugitive Slave Act of 1850, ch. 60, 9 Stat. 462 (authorizing federal commissioners to determine fugitive-slave status without jury trial and compelling federal marshals to participate in returning escaped persons to bondage).

slavery regime¹⁰⁹ — these were the conventional means by which the conventional disposition was maintained. The modern constitutional structure recognizes them as extremism. They were extremism while they were conventional.

The post-Reconstruction violent suppression of Black political and economic life.

After Reconstruction's collapse, the conventional disposition in the former Confederate states was that Black political participation, Black economic mobility, and Black social equality were not constitutional rights. The conventional disposition was maintained by violent means: the Ku Klux Klan,¹¹⁰ the White League,¹¹¹ the Mississippi Plan,¹¹² the Wilmington Insurrection of 1898,¹¹³ the Tulsa Race Massacre of 1921,¹¹⁴ the systematic violence of lynching from the 1880s through the 1960s.¹¹⁵ *Plessy v. Ferguson* gave constitutional cover to the broader regime by upholding "separate but equal."¹¹⁶ The conventional disposition was maintained by means that the modern constitutional structure recognizes as paradigmatic extremism. The radical challenge that eventually prevailed — through the NAACP, *Brown*, the civil rights movement, the Voting Rights Act¹¹⁷ — exposed the conventional disposition as extremism.

The violent suppression of women's suffrage. The Night of Terror at the Occoquan Workhouse on November 14, 1917, is the canonical example. Guards under the supervision of

¹⁰⁹ *Dred Scott*, 60 U.S. 393.

¹¹⁰ See ALLEN W. TRELEASE, *WHITE TERROR: THE KU KLUX KLAN CONSPIRACY AND SOUTHERN RECONSTRUCTION* (1971); ERIC FONER, *RECONSTRUCTION: AMERICA'S UNFINISHED REVOLUTION, 1863-1877* (1988).

¹¹¹ See JAMES K. HOGUE, *UNCIVIL WAR: FIVE NEW ORLEANS STREET BATTLES AND THE RISE AND FALL OF RADICAL RECONSTRUCTION* (2006).

¹¹² See NICHOLAS LEMANN, *REDEMPTION: THE LAST BATTLE OF THE CIVIL WAR* (2006).

¹¹³ See DAVID S. CECELSKI & TIMOTHY B. TYSON, EDS., *DEMOCRACY BETRAYED: THE WILMINGTON RACE RIOT OF 1898 AND ITS LEGACY* (1998).

¹¹⁴ See SCOTT ELLSWORTH, *DEATH IN A PROMISED LAND: THE TULSA RACE RIOT OF 1921* (1982).

¹¹⁵ See EQUAL JUSTICE INITIATIVE, *LYNCHING IN AMERICA: CONFRONTING THE LEGACY OF RACIAL TERROR* (3d ed. 2017) (documenting 4,084 racial-terror lynchings in twelve Southern states from 1877 to 1950).

¹¹⁶ *Plessy*, 163 U.S. 537.

¹¹⁷ Voting Rights Act of 1965, Pub. L. No. 89-110, 79 Stat. 437.

warden W.H. Whittaker beat, choked, and force-fed thirty-three imprisoned women suffragists.¹¹⁸ The conventional disposition that women were not constitutionally entitled to vote was maintained, in this instance, by unconstitutional means — direct state violence against citizens engaged in protected political activity. The means satisfy the extremism criterion. The convention's status as politically mainstream did not.

The violent suppression of the civil rights movement. Klan terrorism through the 1950s and 1960s, the murder of three civil rights workers in Mississippi in 1964,¹¹⁹ the Birmingham church bombing of 1963,¹²⁰ the assassination of Medgar Evers in 1963,¹²¹ the murders of Martin Luther King Jr. and Malcolm X — these were the means by which the conventional Jim Crow disposition was maintained against radical challenge. The conventional disposition was extremism, doctrinally, because the means deployed to maintain it were unconstitutional.

C. WHY THE COROLLARY MATTERS FOR FIRST AMENDMENT DOCTRINE

The conventional-extremism corollary has three doctrinal consequences for First Amendment analysis.

First, it disposes of the recurring argument that a particular categorical political target — anti-fascists, anarchists, anti-American voices, anti-Israel critics, racial-equality advocates — is "extremist" merely because the target is unconventional. The argument confuses the radicality of the target's *view* with the means deployed by the target. If the target advances its position through

¹¹⁸ See STEVENS, *supra* note 53, at 169–95.

¹¹⁹ See SETH CAGIN & PHILIP DRAY, *WE ARE NOT AFRAID: THE STORY OF GOODMAN, SCHWERNER, AND CHANEY AND THE CIVIL RIGHTS CAMPAIGN FOR MISSISSIPPI* (1988).

¹²⁰ See TAYLOR BRANCH, *PARTING THE WATERS*, *supra* note 61, at 889–92 (16th Street Baptist Church bombing, Birmingham, Alabama, Sept. 15, 1963).

¹²¹ See *id.* at 824–25.

constitutional means (speech, association, advocacy, etc.), the target is engaged in radicalism, not extremism, regardless of how unconventional the position. The categorical predicate the contemporary CT apparatus deploys against political minorities is doctrinally a means analysis dressed in views clothing — and the views clothing does no constitutional work.

Second, the corollary supplies the analytical framework for recognizing when conventional state action *itself* satisfies the extremism criterion. A state apparatus that maintains a conventional political disposition by violent means against constitutional dissent is engaged in conventional extremism. The doctrinal label is uncomfortable for conventional politics, but it is what the means analysis produces. The discomfort is not an objection to the framework; it is a symptom of the framework's analytic accuracy.

Third, the corollary explains why radical challenges have historically been the constitutional mechanism for reform. Convention, once it has crystallized, is structurally resistant to internal correction. The constitutional mechanism for identifying when a conventional disposition has crossed into extremism is radical challenge: speech, association, advocacy, litigation, and persuasion that articulates the constitutional defect in the convention. Radical challenge is, in this sense, the constitutional immune system. Suppressing it — by treating radical challenge as itself extremism — eliminates the polity's mechanism for self-correction.

D. The Corollary in Operation: The Free-Speech Asymmetry

The corollary generates a free-speech asymmetry the contemporary apparatus systematically misreads. The First Amendment protects radical political speech *more* robustly when the speech challenges conventional violence — because protection of radical challenge to conventional extremism is precisely the constitutional function of the First Amendment in the historical

pattern Part III.B describes. The apparatus that treats radical critique of state violence as itself "extremism" inverts the constitutional function: it deploys the extremist label not against unconstitutional means but against the very political activity the First Amendment exists to protect.

This is the deep structural error of the contemporary administrative framework. The apparatus that maintains conventional foreign-policy alignment with Israel by labeling anti-Israel-policy speech as "extremism" — to take the example from the June 11, 2025 House hearing¹²² — is operating in the inverse of the constitutional structure. The radical position (that the United States should change its policy because the conventional alignment supports conduct that satisfies the elements of genocide) is, doctrinally, protected First Amendment activity. The categorical state action that suppresses it as "extremism" is, by means analysis, conventional extremism.

The framework does not require a court to accept the radical position's substantive merit. The framework requires the court only to recognize the analytical distinction between means and views, and to apply *Brandenburg* and the modern canon to the categorical predicate at issue. The substantive merit of the radical position is, doctrinally, irrelevant to its First Amendment treatment.

¹²² June 2025 Hrg., *supra* note 17 (passim).

VI. APPLICATION TO CONTEMPORARY COUNTER-TERRORISM PREDICATES

A. *The 2026 U.S. Counterterrorism Strategy*

The May 2026 *U.S. Counterterrorism Strategy* operationalizes the conflation the framework Parts III–V articulates. The Strategy enumerates three "major types of terror groups":¹²³

- Narcoterrorists and Transnational Gangs • Legacy Islamist Terrorists • Violent Left-Wing Extremists, including Anarchists and Anti-Fascists

Pages 6 and 7 elaborate. The Strategy commits to "use all the tools constitutionally available to us to map them at home, identify their membership, map their ties to international organizations like Antifa, and use law enforcement tools to cripple them operationally before they can maim or kill the innocent."¹²⁴ The Strategy adds two further undefined categories: "violent secular political groups whose ideology is anti-American, radically pro-transgender, and anarchist."¹²⁵ The Presidential Foreword commits to extrajudicial killing: "if you hurt Americans, or are planning to hurt Americans, 'We Will Find You and We Will Kill You.'"¹²⁶

The Strategy's categorical structure does precisely what Parts III and IV identify as constitutionally impermissible. **Anarchism**, **anti-fascism**, **anti-American** views, and **radical pro-transgender** advocacy are political-doctrinal dispositions — *views*, in the framework's vocabulary. The means deployed by persons holding these views are not specified by the Strategy; the Strategy attaches the extremist label to the views themselves, treating the views as predicates for state action regardless of the means deployed. That is the constitutional move the

¹²³ 2026 CT STRATEGY, *supra* note 14, at 5.

¹²⁴ *Id.* at 7.

¹²⁵ *Id.*

¹²⁶ *Id.* at 3.

framework identifies as the means/views collapse, and that the doctrinal substrate from *Brandenburg* through the modern canon forbids.

The Strategy's grammatical structure makes the analytical move explicit. "Violent Left-Wing Extremists, **including** Anarchists and Anti-Fascists" — the "including" subsumes Anarchists and Anti-Fascists within the prior category, treating them as Violent Left-Wing Extremists by definition.¹²⁷ No proof of violence by any individual person so categorized is required; the categorical inclusion does the constitutional work. The Strategy thereby converts a means category ("violent extremists") into a views category (anyone holding anarchist or anti-fascist views) by drafting fiat.

The same maneuver appears at page 7. "Violent secular political groups whose ideology is anti-American, radically pro-transgender, and anarchist" treats *ideology* as the predicate. The "violent" qualifier modifies the noun "groups," not the ideology — but the categorical enumeration treats ideology as the discriminating feature. The constitutional predicate the Strategy thereby installs is ideological, not behavioral.

B. The June 2025 House Homeland Security Hearing

The June 11, 2025 hearing of the House Homeland Security Subcommittee on Counterterrorism and Intelligence formalizes the pre-existing administrative-legislative practice the 2026 CT Strategy then operationalizes at the executive level.¹²⁸ The hearing's title — *The Rise of Anti-Israel Extremist Groups and Their Threat to U.S. National Security* — is itself the analytical move the framework identifies as impermissible. The phrase "Anti-Israel Extremist Groups"

¹²⁷ Scalia & Garner, *supra* note 25, § 15.

¹²⁸ June 2025 Hrg., *supra* note 17.

collapses political opposition to Israeli government policy (a *view*) with extremism (a *means* category) by drafting choice.

The hearing record contains several specific conflations the framework's analysis exposes:

Interchangeable use of "extremism" and "radicalism." The hearing transcript repeatedly substitutes the terms for one another without any distinction in meaning. The two terms operate as interchangeable pejoratives, not as analytical categories.¹²⁹

Conflation of anti-ICE protests with antisemitic violence. The Chairman's opening statement treats demonstrations against domestic federal immigration enforcement as part of the same threat space as antisemitic violence in Washington, D.C. and Boulder, Colorado.¹³⁰ The conflation operates by category, not by means: anti-ICE protests use protected political means; antisemitic violence uses unconstitutional means; the categorical framing treats both as "extremism."

Administrative categories as if statutory. The hearing treats "Domestic Violent Extremism" (DVE) and "Homegrown Violent Extremists" (HVE) as if they were statutorily defined CT categories. They are not. The categories are administrative-DHS coinages without statutory grounding in 18 U.S.C. § 2331, § 2332b, or the immigration "terrorist activity" definitions.¹³¹

The categorical title. The hearing's title presupposes that "Anti-Israel" political views are extremist as such. The presupposition does the constitutional work: persons targeted by the hearing's apparatus are targeted because of their views on a contested foreign-policy question, not because of the means they have deployed.

¹²⁹ *Id.* at 236, 243.

¹³⁰ *Id.* at 185–98.

¹³¹ *Id.* at 882.

C. THE ANTI-ISRAEL CONFLATION IN DOCTRINAL DETAIL

The Anti-Israel example is doctrinally clean because it admits of a precise *Brandenburg* application. Two propositions illustrate the line the framework draws:

Proposition (a): "Israel is committing genocide; therefore [a specific violent action against a specific target]."

This is extremism if and only if it satisfies *Brandenburg*'s two prongs. If the speaker directed the statement to inciting imminent lawless action, and if the statement was likely to incite or produce such action, the speech is proscribable. The view ("Israel is committing genocide") is irrelevant; the *means* (the specific incitement to imminent lawless action) is the constitutional question. *Watts* would also analyze the conditional-violence phrasing under the true-threats test.¹³²

Proposition (b): "Israel is committing genocide; therefore the United States should cease all funding and military aid."

This is radicalism by the framework's definition. The view advanced is radical (a substantial position critical of conventional U.S. foreign-policy alignment with Israel). The means deployed is petition for policy change through constitutional channels — speech, association, electoral mobilization, peaceful boycott. *Snyder v. Phelps* protects offensive political speech on matters of public concern;¹³³ *NAACP v. Claiborne* protects political boycott as concerted political activity;¹³⁴ *Holder v. HLP* protects independent advocacy of FTO political positions (which, regardless of the speaker's views on Israeli government conduct, addresses a

¹³² The conditional-violence phrasing of Proposition (a) — "therefore [a specific violent action]" — admits of *Watts* analysis depending on the speaker's reckless awareness of the threatening nature of the statement (*Counterman*, 600 U.S. at 79) and the reasonable-listener test (*Virginia v. Black*, 538 U.S. at 359). The point for this Article's framework is that the analysis runs through the means, not through the radicality of the underlying view about Israeli government conduct.

¹³³ *Snyder*, 562 U.S. at 458.

¹³⁴ *Claiborne*, 458 U.S. at 911.

paradigmatic political question on which independent advocacy is protected).¹³⁵ The factual basis for the radical proposition — including ongoing proceedings at the International Court of Justice under the Genocide Convention,¹³⁶ UN Human Rights Council findings,¹³⁷ and contemporaneous mass-casualty data¹³⁸ — does not transform protected political speech into proscribable extremism. *Citizens United v. FEC* holds that political speech is the "primary object of First Amendment protection";¹³⁹ *Mills v. Alabama* holds that "there is practically universal agreement that a major purpose of [the First] Amendment was to protect the free discussion of governmental affairs."¹⁴⁰

The hearing's title — and the Strategy's "anti-American" categorical predicate — treats Propositions (a) and (b) as the same threat. The framework articulated in this Article makes the distinction the doctrine requires: (a) is extremism if it satisfies *Brandenburg*, regardless of the radicality of the underlying view; (b) is radicalism regardless of how unconventional the political position, because the means deployed are constitutional.

D. The Conventional-Extremism Application

The conventional-extremism corollary developed in Part V applies to the contemporary apparatus in two directions.

¹³⁵ *Holder v. HLP*, 561 U.S. at 26–27.

¹³⁶ See Application of the Convention on the Prevention and Punishment of the Crime of Genocide in the Gaza Strip (S. Afr. v. Isr.), Order (Provisional Measures), 2024 I.C.J. (Jan. 26).

¹³⁷ See, e.g., Independent International Commission of Inquiry on the Occupied Palestinian Territory, Including East Jerusalem, and Israel, Report, U.N. Doc. A/HRC/56/26 (June 19, 2024).

¹³⁸ Sources documenting casualty data in the Gaza conflict include U.N. Office for the Coordination of Humanitarian Affairs reporting, Gaza Health Ministry data, and independent academic analysis. See, e.g., Rasha Khatib, Martin McKee & Salim Yusuf, *Counting the Dead in Gaza: Difficult but Essential*, 404 LANCET 237 (July 5, 2024).

¹³⁹ *Citizens United v. FEC*, 558 U.S. 310, 339 (2010).

¹⁴⁰ *Mills v. Alabama*, 384 U.S. 214, 218 (1966).

First, it disposes of the categorical predicate the Strategy installs. Treating Anarchists, Anti-Fascists, anti-American advocates, and radically pro-transgender advocates as extremists by categorical fiat is, doctrinally, a state-action choice to maintain conventional political dispositions by means that the framework's analysis identifies as themselves extremist. The state apparatus's *means* — categorical surveillance, undefined-predicate targeting, the announced commitment to "find and kill" persons identified by ideological category — are unconstitutional in the same way that lynching, force-feeding suffragists, and Klan terrorism were unconstitutional. The apparatus is, on the means analysis, conventional extremism in operation.

Second, it explains the institutional logic of the categorical structure. The contemporary administrative apparatus is doctrinally interested in suppressing radical political challenge because radical political challenge is the constitutional mechanism through which conventional dispositions are exposed as extremism and reformed. The apparatus that suppresses anti-Israel-policy speech, anti-fascist organizing, anarchist constitutional critique, and pro-transgender advocacy is, on the means analysis, the institutional manifestation of conventional extremism — the apparatus deploying unconstitutional means to maintain conventional dispositions against radical challenge. The constitutional structure has confronted the same institutional logic in slavery, in Jim Crow, in the suppression of women's suffrage, in the suppression of the civil rights movement; the contemporary apparatus is doctrinally identical in operation, even where the substantive content differs.

VII. DOCTRINAL AND STRUCTURAL CONSEQUENCES

A. Void-for-Vagueness

The vagueness doctrine — articulated in modern form by *Grayned v. City of Rockford*¹⁴¹ and applied to criminal predicates by *Sessions v. Dimaya*¹⁴² and *Johnson v. United States*¹⁴³ — requires that government predicates for state action "give the person of ordinary intelligence a reasonable opportunity to know what is prohibited."¹⁴⁴ The doctrine applies *a fortiori* to predicates that authorize state killing.

The Strategy's categorical predicates — "Anarchist," "Anti-Fascist," "anti-American," "radically pro-transgender," "violent left-wing extremist" — fail the vagueness test by orders of magnitude. None is statutorily defined. Each is susceptible to elastic application against any citizen the apparatus chooses. *Dimaya* invalidated the residual clause of the "crime of violence" definition under 18 U.S.C. § 16(b) for vagueness even though the residual clause had a structural meaning susceptible to judicial construction.¹⁴⁵ *Johnson* invalidated the Armed Career Criminal Act's residual clause for vagueness even though "violent felony" had decades of judicial application behind it.¹⁴⁶ The categorical predicates the Strategy invokes are categorically vaguer than the predicates struck down in *Dimaya* and *Johnson*.

The radicalism/extremism distinction supplies the doctrinal lever the vagueness analysis requires. A statute (or executive predicate) that targeted means — true threats, imminent incitement, coordination with an FTO — would supply the ascertainable conduct the doctrine demands. A statute (or executive predicate) that targets views is, by its structure, vague: the

¹⁴¹ *Grayned v. City of Rockford*, 408 U.S. 104 (1972).

¹⁴² *Sessions v. Dimaya*, 584 U.S. 148 (2018).

¹⁴³ *Johnson v. United States*, 576 U.S. 591 (2015).

¹⁴⁴ *Grayned*, 408 U.S. at 108.

¹⁴⁵ *Dimaya*, 584 U.S. at 156–57.

¹⁴⁶ *Johnson*, 576 U.S. at 596–98.

categorical predicates of view are not susceptible to ascertainable definition because the categories operate by political characterization rather than by conduct.

B. Equal Protection

The Strategy pairs the targeting enumeration at pages 5 and 7 with a parallel protection enumeration at page 6. The protected categories include "conservative Catholics attending traditional mass in Virginia, parents standing up for their children at schoolboard meetings, Members of Congress, [and] President Trump and his associates."¹⁴⁷ The juxtaposition establishes, on the document's face, viewpoint-based asymmetry: certain political viewpoints are enumerated as protected from CT-apparatus weaponization, while opposing political viewpoints are enumerated as targeted *with* the apparatus.

The equal protection violation is straightforward under *Bolling v. Sharpe*¹⁴⁸ (Fifth Amendment due-process clause reverse-incorporates equal-protection principles against federal government) and *Hunter v. Underwood*¹⁴⁹ (discriminatory purpose invalidates facially neutral law). The Strategy is not facially neutral; the discriminatory purpose appears on its face. The radicalism/extremism distinction supplies the analytic explanation for the asymmetry: the protected categories are *views* the apparatus shares; the targeted categories are *views* the apparatus opposes. The asymmetry has nothing to do with means and everything to do with views — which is precisely the constitutional inversion the framework identifies.

¹⁴⁷ 2026 CT STRATEGY, *supra* note 14, at 6.

¹⁴⁸ *Bolling v. Sharpe*, 347 U.S. 497, 499 (1954).

¹⁴⁹ *Hunter v. Underwood*, 471 U.S. 222, 233 (1985).

C. DUE PROCESS

The Fifth Amendment provides that "[n]o person shall... be deprived of life, liberty, or property, without due process of law."¹⁵⁰ The Strategy's Presidential Foreword commits to extrajudicial killing of persons identified by undefined political-identity categories. *Mathews v. Eldridge*¹⁵¹ supplies the procedural-due-process framework; *Hamdi v. Rumsfeld*¹⁵² holds that "a state of war is not a blank check for the President when it comes to the rights of the Nation's citizens."¹⁵³ *Hamdi* required process even for a citizen detained as an enemy combatant in a declared overseas conflict. *A fortiori*, U.S. citizens at home who fall within undefined political-identity categories — and against whom no act of war has been declared — cannot be summarily killed.

The substantive due process analysis is equally direct. *County of Sacramento v. Lewis* forbids state action that is "so arbitrary that it shocks the conscience."¹⁵⁴ Predicating extrajudicial state killing of citizens on attributed future intent — without any process for testing the attribution, and based on undefined categorical predicates of view — is the paradigm shock-the-conscience case.

The radicalism/extremism distinction supplies the doctrinal vocabulary the due process analysis requires. The Strategy's categorical predicates target views, not means; the targeting is therefore unconstitutional. The framework provides courts confronted with the predicate a clean analytical move: identify whether the categorical predicate is doing work on means or on views, and apply *Brandenburg* and the means analysis accordingly. The doctrinal infrastructure is already in place; the framework supplies the synthesis.

¹⁵⁰ U.S. CONST. amend. V.

¹⁵¹ *Mathews v. Eldridge*, 424 U.S. 319 (1976).

¹⁵² *Hamdi*, 542 U.S. 507.

¹⁵³ *Id.* at 536.

¹⁵⁴ *County of Sacramento v. Lewis*, 523 U.S. 833, 846 (1998).

D. Structural Separation of Powers

The Strategy operationalizes a constitutional move at the structural level that compounds the substantive violations: it asserts executive authority to define new CT predicates, designate U.S. citizens as members of CT categories, authorize operational action against them, and bypass Article III adjudication of the predicates underlying that operational action. The framework's analysis exposes each of these as ultra vires.

Congress alone defines CT predicates. The Constitution vests "[a]ll legislative Powers herein granted" in Congress.¹⁵⁵ The definition of criminal and CT predicates affecting citizen rights is a quintessentially legislative function. *INS v. Chadha* holds that the legislative function may be exercised only by Congress through bicameralism and presentment.¹⁵⁶ Congress has enacted at least six statutory definitions of "terrorism," each tied to a specific statutory purpose;¹⁵⁷ none includes "Anarchist," "Anti-Fascist," "anti-American," "radically pro-transgender," or "violent left-wing extremist" as a categorical predicate. The executive branch's invention of these predicates is the usurpation of the Article I legislative function.

The judiciary alone determines guilt sufficient to authorize the taking of life. Article III vests the judicial power in the Supreme Court and inferior courts. *Marbury v. Madison* holds that "it is emphatically the province and duty of the judicial department to say what the law is."¹⁵⁸ A "find and kill" commitment that bypasses Article III adjudication is a structural assault on the constitutional separation of powers. *Youngstown Sheet & Tube Co. v. Sawyer* (Jackson, J., concurring) holds that executive authority is "at its lowest ebb" when acting against the express

¹⁵⁵ U.S. CONST. art. I, § 1.

¹⁵⁶ *INS v. Chadha*, 462 U.S. 919, 951 (1983).

¹⁵⁷ The six statutory definitions are: 18 U.S.C. § 2331(1) (international terrorism); 18 U.S.C. § 2331(5) (domestic terrorism); 18 U.S.C. § 2332b(g)(5) (federal crime of terrorism); 8 U.S.C. § 1182(a)(3)(B)(iii) (terrorist activity for immigration purposes); 22 U.S.C. § 2656f(d) (terrorism for State Department reporting purposes); 18 U.S.C. § 2333 (civil terrorism cause of action).

¹⁵⁸ *Marbury*, 5 U.S. at 177.

or implied will of Congress.¹⁵⁹ No AUMF authorizes CT action against U.S. citizens domestically on political-identity predicates. The executive's commitment is therefore at the lowest ebb of constitutional authority, exercised against the implied will of Congress as embodied in the six statutory definitions Congress has enacted.

The framework supplies the analytical bridge between the substantive First Amendment violation and the structural separation-of-powers violation. The Strategy's predicates target *views* because, by their structure, only view-based predicates can authorize the categorical state action the Strategy contemplates. A predicate that targeted *means* would be limited by the means analysis to the unconstitutional means the doctrinal substrate already permits the state to address. The substitution of view-based predicates for means-based predicates is the doctrinal move that enables the structural-separation-of-powers usurpation.

E. Petition Clause

The First Amendment Petition Clause protects "the right of the people... to petition the Government for a redress of grievances."¹⁶⁰ The Clause protects access to the courts and to the political branches as channels for the remedy of constitutional and statutory wrongs.¹⁶¹ The contemporary administrative apparatus, applied to civil-rights litigants challenging federal officials or major U.S. corporations through the federal courts, threatens the Petition Clause directly: the "planning to hurt Americans" predicate, joined to the categorical inclusion of Anarchists and Anti-Fascists, reaches a pro se litigant whose pleadings seek declaratory and

¹⁵⁹ *Youngstown Sheet & Tube Co. v. Sawyer*, 343 U.S. 579, 637 (1952) (Jackson, J., concurring).

¹⁶⁰ U.S. CONST. amend. I.

¹⁶¹ See *Borough of Duryea v. Guarnieri*, 564 U.S. 379, 388 (2011) (Petition Clause protects access to the courts as a constitutional channel for the redress of grievances).

injunctive relief against named federal officials. That construction would chill the petition right of any citizen prosecuting civil-rights claims against named federal officials.¹⁶²

The radicalism/extremism distinction frames the Petition Clause analysis as the doctrinal substrate requires. Litigation is the paradigm form of constitutional means: it is the constitutionally specified channel for the redress of grievances. A categorical predicate that treats litigation against the apparatus as "planning to hurt Americans" — and authorizes state action against the litigant on that predicate — is the structural inversion of the Petition Clause. The framework supplies the doctrinal vocabulary the Petition Clause analysis requires: litigation is radicalism by means; the apparatus that suppresses it is, by means analysis, conventional extremism.

VIII. CONCLUSION

The constitutional distinction between radicalism and extremism is the operative principle of American First Amendment doctrine from *Whitney* through *Brandenburg* through the contemporary canon. The principle has not previously been articulated as a unified analytical framework defining the two named categories by reference to constitutional and unconstitutional means. This Article supplies the synthesis. The doctrinal substrate is well-developed and binding; the framework is recognition, not creation.

The framework's significance lies in three structural moves. *First*, it draws the constitutional line at means, not views — a line that runs through every modern First Amendment case but that has not been named. *Second*, it carries the corollary that conventional

¹⁶² See, e.g., *NAACP v. Button*, 371 U.S. 415 (1963) (state action chilling access to courts as a method of advancing civil rights is unconstitutional).

dispositions may themselves be extremist while remaining conventional, and that radical challenges are the constitutional mechanism for revealing which conventional dispositions are themselves extremist. *Third*, it supplies the doctrinal vocabulary needed to analyze contemporary categorical counter-terrorism predicates — predicates that target views rather than means and that, by their structure, invert the constitutional framework the doctrinal substrate maintains.

The contemporary application — the May 2026 *U.S. Counterterrorism Strategy*, the June 11, 2025 House Homeland Security hearing, the broader administrative apparatus that operationalizes view-based targeting against political minorities — exposes the framework's practical stakes. The apparatus authorizes state action against U.S. citizens on the basis of undefined political-identity predicates. The framework's analysis shows that the predicates are not just bad policy but doctrinally impermissible: they collapse the means/views line the First Amendment requires, install view-based targeting in place of the means analysis the doctrinal substrate mandates, and treat radical political challenge — the constitutional mechanism for reform — as itself the threat.

The doctrinal authorities supporting the framework are old. *Brandenburg* is from 1969; the foundational concurrences in *Whitney* and *Abrams* are from the 1920s; the modern canonical cases span the half-century since *Brandenburg*. A court applying the framework is applying existing law, not creating new law. The synthesis the framework provides is conceptual, not doctrinal: it gives the protected and unprotected categories the names the cases imply but never assign.

If the framework is correctly stated, it has three implications beyond the specific contemporary application this Article addresses. First, it provides a defensive constitutional standard available to any litigant facing a categorical CT predicate or analogous state-action

predicate built on view-based targeting. Second, it provides a legislative-drafting standard for any Congress considering CT or domestic-extremism statutes: the predicates must be means-based to survive constitutional analysis. Third, it provides an analytical framework for academic and journalistic discourse on radicalism, extremism, and the contested boundary between them — a framework grounded in constitutional doctrine rather than in the political contingency of the labels.

The framework does not resolve every difficult case. The means analysis is the doctrinal beginning of the inquiry; specific applications will continue to generate hard cases — cases at the *Brandenburg* line where imminence and likelihood are contested, cases at the *Watts/Counterman* line where the true-threats analysis turns on mens rea and reasonable-listener reception, cases at the *Holder v. HLP* line where coordination with a designated FTO is contested. The framework does not collapse these inquiries; it organizes them under the proper analytical heading.

What the framework does is supply the analytical vocabulary the contemporary moment requires. The administrative apparatus operates on a view-based predicate the constitutional doctrine forbids. The doctrinal substrate forbidding it is already in place. The framework names the line the substrate draws — *means, not views* — and the structural relationship between the two named categories — radicalism, defined by constitutional means and always protected; extremism, defined by unconstitutional means and properly proscribable; conventional dispositions, susceptible to characterization as extremist whenever the means by which they are maintained satisfy the extremism criterion.

The Article submits this framework for public use. It is intended for defenders confronting categorical CT predicates, for courts confronting the predicates' operational

application, for legislators considering CT legislation, and for the academic and journalistic discourse that articulates the constitutional values the doctrine maintains. The framework is not the author's invention; it is the doctrine's. The author has supplied only the synthesis. The doctrinal architecture the framework rests on is the work of the constitutional system the framework defends.

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